

HOUSE BILL 1234

By McKenzie

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to K-12 education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3802, is amended by deleting the section and substituting instead the following:

As used in this part, unless the context otherwise requires:

(1) "Classroom library" means materials donated to, purchased by, or acquired by an individual teacher, which are made available in the teacher's classroom to students assigned to the teacher's class or classes;

(2) "Library collection" means the materials made available to students by a school operated by an LEA or by a public charter school, but does not include materials made available to students as part of a course curriculum or materials made available to students as part of a classroom library; and

(3) "Materials" means books, periodicals, newspapers, manuscripts, films, prints, documents, microfilm, discs, cassettes, videotapes, video games, applications, and subscription content in any form.

SECTION 2. Tennessee Code Annotated, Section 49-6-3803(a), is amended by adding the language "or classroom library" immediately after the language "a library collection".

SECTION 3. Tennessee Code Annotated, Section 49-6-3803, is amended by deleting subsection (b) and by deleting the first sentence of subsection (d) and substituting instead the following:

Each local board of education and public charter school governing body shall adopt a policy for developing and reviewing school library collections and for classroom libraries.

SECTION 4. Tennessee Code Annotated, Section 49-6-3803(d), is amended by adding the following as new subdivisions:

() A procedure for teachers, or for parents and legal guardians of students with access to a classroom library, to review and refer materials in a teacher's classroom library for review and evaluation consistent with this section;

() A procedure to ensure that parents and legal guardians of students with access to a classroom library have multiple opportunities throughout the school year to view the books in their student's classroom libraries; and

() A provision prohibiting teachers from knowingly or intentionally circumventing the LEA's or public charter school's library collection policy through the teacher's classroom library, such as including materials in the teacher's classroom library that have been found by the local board of education, the public charter school governing body, or the state textbook and instructional materials quality commission pursuant to § 49-6-2201(m) to be inappropriate for the age and maturity levels of the students who may access the materials, or that have been found by the local board or governing body to be unsuitable for, or inconsistent with, the educational mission of the school.

SECTION 5. Tennessee Code Annotated, Section 49-6-3803(f), is amended by adding the language "or in a classroom library" after the language "in the school's library collection" and by adding the language "or classroom library" after the language "from the library collection".

SECTION 6. Tennessee Code Annotated, Section 49-6-3803(g), is amended by adding the language "or a classroom library" after the language "a school's library collection" and by adding the language "or classroom library" after the language "a library collection".

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.